

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                                                                                                                                                                                                  |
|--------------------------------------------------|-------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Cheyanne Ralph                  | Team:<br>Squad #16                  | CCRB Case #:<br>201707730 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 09/19/2017 7:45 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>3/19/2019   | Precinct:<br>67                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Wed, 09/20/2017 8:16 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 09/20/2017 8:16 AM                                                                                                                                                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. Officers           |        |        | 067 PCT |
| 2. POM Richard Ortega | 02674  | 956991 | 067 PCT |
| 3. POM Fabian Modesto | 08846  | 950897 | 067 PCT |
| 4. An officer         |        |        | 067 PCT |
| 5. POM Joseph Blum    | 20360  | 957389 | 067 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POM Joseph Bautista  | 113       | 954534 | 067 PCT  |
| 2. POM Michael Fiandola | 11031     | 955914 | 067 PCT  |

| Officer(s)                              | Allegation                                                                        | Investigator Recommendation |
|-----------------------------------------|-----------------------------------------------------------------------------------|-----------------------------|
| A . Officers                            | Abuse: Officers entered § 87(2)(b) in Brooklyn.                                   | A . Exonerated              |
| B . POM Richard Ortega                  | Abuse: Police Officer Richard Ortega forcibly removed § 87(2)(b) to the hospital. | B . Exonerated              |
| C . POM Fabian Modesto                  | Abuse: Police Officer Fabian Modesto forcibly removed § 87(2)(b) to the hospital. | C . Exonerated              |
| D . POM Joseph Blum                     | Abuse: PO Joseph Blum forcibly removed § 87(2)(b) to the hospital                 | D . Exonerated              |
| E . POM Richard Ortega                  | Force: Police Officer Richard Ortega used physical force against § 87(2)(b)       | E . Exonerated              |
| F . POM Fabian Modesto                  | Force: Police Officer Fabian Modesto used physical force against § 87(2)(b)       | F . Exonerated              |
| G . An officer<br>§ 87(2)(g), § 87(4-b) | Force: An officer used physical force against § 87(2)(b)                          | G . Officer(s) Unidentified |

### Case Summary

On September 20, 2017, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On September 19, 2017, at approximately 7:45 p.m., PO Richard Ortega, PO Fabian Modesto, and PO Joseph Blum of the 67<sup>th</sup> Precinct responded to a report of an emotionally disturbed person at § 87(2)(b) in Brooklyn (Board Review 01). The following allegations resulted:

Officers entered § 87(2)(b), in Brooklyn (**Allegations A: Abuse of Authority, Exonerated**). PO Richard Ortega, PO Fabian Modesto, and PO Joseph Blum forcibly removed § 87(2)(b) to the hospital (**Allegation B-D: Abuse of Authority, Exonerated**). PO Richard Ortega and PO Fabian Modesto used physical force against § 87(2)(b) (**Allegations E and F: Abuse of Authority, Exonerated**). An officer used physical force against § 87(2)(b) (**Allegation G: Force, Officer Unidentified**). § 87(2)(g), § 87(4-b)

This case has four videos as video evidence.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Officers entered § 87(2)(b), in Brooklyn.**

It is undisputed that officers entered § 87(2)(b) in Brooklyn based on a 911 call reporting that § 87(2)(b) wanted to commit suicide.

§ 87(2)(b) (Board Review 02) testified that when the officers arrived she opened the door wide enough so that the officers could see her and her friend § 87(2)(b) inside the apartment, and stood between the door and the door frame. PO Modesto and PO Ortega informed § 87(2)(b) that they got a call from her daughter, § 87(2)(b) § 87(2)(b) who reported that she was suicidal and in distress. § 87(2)(b) began laughing in response, and asked the officers if she looked like she was in distress, or suicidal. An officer said, “Well, we can’t make the call. We have to wait for EMS.” § 87(2)(b) said, “Anyway, you guys can stay here. I am going to use the bathroom.” § 87(2)(b) had to use the bathroom because she was pregnant. § 87(2)(b) did not inform the officers that she was pregnant before she expressed her need to use the bathroom. § 87(2)(b) then walked to her bathroom and left her front door ajar.

As § 87(2)(b) was walked to her bathroom, she heard the officers entering the apartment. She could not recall which officer was the first officer to enter the apartment and did not know if they all entered at once. § 87(2)(b) also did not turn around when she heard the officers entering her apartment, and continued to walk to the bathroom. As she walked to the bathroom she said, “Get out! I do not want you in my house.” An officer replied, “We are not leaving until the ambulance comes.”

§ 87(2)(b) (Board Review 03) testified that that when § 87(2)(b) opened the door for the officers, she opened it halfway, just enough for their bodies to be seen through the door. The officers then informed § 87(2)(b) that they got a call stating that an individual was trying to hurt himself. When § 87(2)(b) told the officers that she was fine, she was informed by an officer that EMS was on the way to verify if she was well or not. The officers also stated they would not leave the premises until they knew that § 87(2)(b) was okay. During this conversation an officer positioned himself in the doorway. The officer did not try to enter the apartment but § 87(2)(b) felt the tension because § 87(2)(b) has had past experiences with these officers. § 87(2)(b) could not recall which officer positioned himself in the doorway, but said that it was the officer that mainly interacting with § 87(2)(b) during the encounter. § 87(2)(b) did not say anything in response to the officer positioning himself in the doorway. § 87(2)(b) then informed the officers that she had to use the bathroom. The officers immediately rushed into the apartment in response. § 87(2)(b) later said that when § 87(2)(b) expressed that she wanted to go to the bathroom, an officer told her that she could not and then positioned himself in the doorway. § 87(2)(b) could not describe this officer and stated that the officers never informed § 87(2)(b) why she could not use the bathroom. § 87(2)(b) then said that she had to go to the bathroom a second time and was told she could not do so by the officers. She then said, “I am going to use the bathroom anyway because I have to use the bathroom.” As § 87(2)(b) walked to the bathroom, the officers entered the apartment. § 87(2)(b) stood by the door when the officers entered.

PO Ortega (Board Review 04) testified that when he and PO Modesto arrived on the second floor of § 87(2)(b), they informed the other officers on scene of their previous interactions with § 87(2)(b). Because PO Ortega and PO Modesto had arrested § 87(2)(b) a few weeks before the date of incident, they did not want to upset her and so asked the other officers to take the lead. The officers knocked on § 87(2)(b)'s apartment door while PO Ortega and PO Modesto stood in the stairwell leading up to the third floor apartments so that § 87(2)(b) could not see that they were present. PO Ortega could not recall which officer specifically knocked on § 87(2)(b)'s door and did not see how § 87(2)(b) opened the door because he could not see her apartment door from where he stood, which was approximately 10 feet away. When § 87(2)(b) opened the door the officers explained why they were there, and § 87(2)(b) stated that she was aware that her daughter, § 87(2)(b), § 87(2)(b) had called 911 but did not know why she called. At that point officers told § 87(2)(b) that they wanted to come into the apartment to see if everything was okay. § 87(2)(b) replied, “I don’t got nothing to hide.” It was then PO Joseph Blum, PO Joseph Bautista, PO Michael Fiandola and PO John Ramos entered the apartment. PO Ortega and PO Modesto remained in the stairwell. PO Ortega did not hear § 87(2)(b) express that she did not want officers inside her apartment; because once the officers entered the apartment he was not listening to their conversation. He stated, “From where we were standing we could see the officers but we could not see § 87(2)(b) because she was inside the apartment.” PO Ortega denied placing his foot in § 87(2)(b)'s doorway. Approximately four minutes after the officers entered the apartment, § 87(2)(b) mentioned that she needed to go to the restroom. § 87(2)(b) did not say why she needed to go to the restroom. At that point, PO Ortega remembered that during her arrest a few weeks prior, § 87(2)(b) was adamant about using the restroom and so PO Ortega and PO Modesto immediately entered the apartment when they heard this. PO Ortega stated that being that § 87(2)(b) was adamant about using the restroom during their previous encounter and did the same thing during this incident, it raised his suspicion. PO Ortega said, “For officer safety we went inside the apartment to tell the other officers not to allow

her into the bathroom. There were no female officers at the scene and we don't know if she had any weapons or anything that could hurt us or if she wanted to escape from the bathroom."

PO Modesto (Board Review 05) corroborated PO Ortega's account in that because they did not want to upset § 87(2)(b) they stood in the staircase so that § 87(2)(b) could not see them. PO Modesto only heard the officers knock on § 87(2)(b)'s door and did not see them do so. He could not recall how officers gained access into the apartment and said that he believed § 87(2)(b) allowed the officers into the apartment. PO Modesto could not recall if § 87(2)(b) ever verbalized this and did not see her do anything to physically allow officers into the apartment because he was not looking. § 87(2)(b) did not inform PO Modesto that an officer placed his foot in the door to prevent her from closing the door and he was not aware of § 87(2)(b) trying to close the door as she was speaking to the officers. § 87(2)(b) also did not object to officers entering her apartment. When the officers gained entry, § 87(2)(b) expressed that she needed to go to the restroom. It was then PO Modesto and PO Ortega entered the apartment.

PO Blum (Board Review 06) stated that when he arrived, PO Modesto and PO Ortega informed him that § 87(2)(b) had been removed to the hospital as an emotionally disturbed person in the past and was aggressive. PO Blum knocked on § 87(2)(b)'s door while PO Modesto and PO Ortega stood to the side. § 87(2)(b) opened the door halfway and poked her head through. PO Blum informed her that they received a call stating that she was texting someone suicidal thoughts and they just wanted to interview her to make sure she was okay. PO Blum could not recall if § 87(2)(b)'s body was in view at that time, and only remembered her face. PO Blum and could not recall placing his foot in the doorway while speaking to § 87(2)(b). PO Blum then said, "Do you mind if I come in?" § 87(2)(b) replied, "Yeah, no problem." § 87(2)(b) then fully opened the door so that officers could enter inside the apartment, and stood away from the door. PO Blum had no other reason to enter the apartment besides to make sure § 87(2)(b) was okay.

Event § 87(2)(b) revealed that a female called 911 to report that her mom was texting her stating that she wanted to commit suicide and was home alone (Board Review 01).

According to People v. Dallas, 8 N.Y.3d 890 (2007), officers may enter a private residence without a warrant if they have "reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property," if their search is not "primarily motivated by the intent to arrest or seize evidence," and if there is "some reason approximating probable cause to associate the emergency with the area or place being searched" (Board Review 07).

People v. Greenleaf, 222 AD 2d 838 (1995), outlines three requirements that must be met to apply the emergency exception to the warrant requirement for an entry: "The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. The search must be primarily motivated by intent to arrest and seize evidence. There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched" (Board Review 08).

NYPD Patrol Guide Procedure 221-13 (Board Review 09) defines an emotionally disturbed person as “a person who appears to be mentally ill or emotionally deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others,” and states that emotionally disturbed person must be taken into protective custody.

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] it is recommended that **Allegations A** be closed as *Exonerated*.

**Allegation (B) Abuse of Authority: Police Officer Richard Ortega forcibly removed § 87(2)(b) [REDACTED] to the hospital.**

**Allegation (C) Abuse of Authority: Police Officer Fabian Modesto forcibly removed § 87(2)(b) [REDACTED] to the hospital.**

**Allegation (D) Abuse of Authority: Police Officer Joseph Blum forcibly removed § 87(2)(b) [REDACTED] to the hospital.**

It is undisputed that § 87(2)(b) [REDACTED] was removed to § 87(2)(b) [REDACTED].

§ 87(2)(b) [REDACTED] (Board Review 02) stated that when the officers informed her that they had received reports that she was suicidal, she protested, and the officers in response said that the Emergency Medical Technicians (EMTs) would determine whether she would be hospitalized. When the EMTs arrived they asked § 87(2)(b) [REDACTED] to see the phone she used to talk to her daughter, and informed her that once they receive a call indicating that an individual is suicidal, that individual must be taken to the hospital. § 87(2)(b) [REDACTED] informed the EMTs that she used § 87(2)(b) [REDACTED] phone to text her daughter. § 87(2)(b) [REDACTED] refused to show the EMTs his phone because he felt like it was invading his privacy. The officers and the EMTs then spoke in the hallway. After this conversation the EMTs exited the apartment and went downstairs. The EMTs were only inside the apartment for approximately three minutes. § 87(2)(b) [REDACTED] did not hear the officers directly instruct the EMTs to leave the apartment. § 87(2)(b) [REDACTED] was ultimately removed to § 87(2)(b) [REDACTED]  
[REDACTED]

§ 87(2)(a) PHL § 18(6) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

PO Ortega (Board Review 04) stated that a few minutes after he and PO Modesto entered the apartment, EMS arrived. When the EMTs arrived, PO Ortega informed them that he has

interacted with § 87(2)(b) in the past and during that interaction she was determined to be an emotionally disturbed person. He then informed them of the information they had received over the radio. The EMTs in response said that he wanted to speak to § 87(2)(b) and asked § 87(2)(b) a few questions, including whether she wanted to kill herself. § 87(2)(b) in response began yelling and said that she was texting her daughter and wanted to show the officers and the EMTs the messages. However, § 87(2)(b) who sat in the corner of the bedroom refused to show the officers his phone because he was using it to record them. At that point the EMT's determined that § 87(2)(b) needed to be removed to the hospital for further evaluation because they could not determine what was happening.

PO Modesto (Board Review 05) stated that when he entered the apartment, he asked § 87(2)(b) if she wanted to hurt herself or whether she was taking any medication. § 87(2)(b) refused to answer these questions. Because § 87(2)(b) refused to answer, PO Modesto told PO Ortega that they should wait for EMS to arrive because the EMTs were going to ask her the same exact questions, and would make the final determination on whether or not she needs to be evaluated. When asked if § 87(2)(b) did anything thing in his presence to make him believe that she was an emotionally disturbed person, PO Modesto said, "Well, she was not answering any questions, so I could not make that determination."

PO Blum (Board Review 06) stated that when the EMTs arrived, he informed them that § 87(2)(b) has history of being an emotionally disturbed person and that a third party caller stated that § 87(2)(b) wanted to commit suicide. The EMTs in response did their own investigation into the matter. PO Blum did not know what investigation the EMTs did, but stated they ultimately determined that § 87(2)(b) was an emotionally disturbed person due to the circumstances of the 911 call. PO Blum did not determine that § 87(2)(b) was an emotionally disturbed person at any time before this because he is not a medical professional.

Aided #§ 87(2)(b) prepared by PO Richard Ortega revealed that at the time and place of occurrence, § 87(2)(b)'s daughter called 911 because § 87(2)(b) called her and told her that she wanted to commit suicide. Upon officers responding to the scene, EMS informed officers that § 87(2)(b) must be removed to § 87(2)(b) § 87(2)(b) (Board Review 16).

As discussed above, Event § 87(2)(b) revealed that a female caller called 911 to report that her mom was texting her stating that she wants to commit suicide and was home alone (Board Review 01 ).

Patrol Guide Procedure 221-13 (Board Review 09) states that a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others must be removed to the hospital.

New York Mental Hygiene Law § 9.41 (Board Review 12) states that an officer may take into custody.... "any person who appears to be mentally ill and is conducting himself or herself in a manner which is likely to result in serious harm to the person or others. Such officer may direct the removal of such person or remove him or her to any hospital or any comprehensive

psychiatric emergency program, or, pending his or her examination or admission to any such hospital or program, temporarily detain any such person in another safe and comfortable place.”

Patrol Guide Procedure 216-01 outlining general aided case procedures notes that “When an aided person is placed in case of ambulance or medical personnel at a hospital, the authority and responsibility for the medical care of the aided rests solely with hospital personnel. Uniformed members of the service concerned shall cooperate with ambulance / hospital personnel in every reasonable manner” (Board Review 19).

§ 87(2)(g)

. It is therefore recommended that **Allegations B – D** be closed as **Exonerated**.

**Allegation (E) Abuse of Authority: Police Officer Richard Ortega forcibly removed § 87(2)(b) to the hospital.**

**Allegation (F) Abuse of Authority: Police Officer Fabian Modesto forcibly removed § 87(2)(b) to the hospital.**

§ 87(2)(b) stated that after the EMTs exited her apartment, the officers said, “Well, he is taking too long to show the phone.” PO Ortega and PO Modesto then got onto § 87(2)(b) s bed, dragged her off of her bed by grabbing onto by her leg and her arm as she was seated upright against the wall. § 87(2)(b) was then thrown face-down onto the ground. § 87(2)(b) was not doing anything with her body during this time because she could not move. She later said that before she was thrown onto the ground, she was pulling away from the officers so that they could let of her. While on the ground an officer held § 87(2)(b) s head against the ground, while another officer held her leg near her pelvic area as he pushed her onto the ground. § 87(2)(b) s head was forced into the ground so hard that the skin on her forehead came off as a result. Another officer then held onto § 87(2)(b) s calf. § 87(2)(b) could not see which officer was performing each action. As § 87(2)(b) was being handcuffed, PO Ortega placed his knee in her lower back. § 87(2)(b) she knew that it was PO Ortega that did this because she was able to turn around and see him do so. She initially stated that when PO Ortega placed his knee in her back she was still resisting by pulling away from the officers. She later said that she was faced down on the ground and could not move. § 87(2)(b) sustained shoulder pain, and swelling to her wrists. § 87(2)(b) was then taken to § 87(2)(b). § 87(2)(b)

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

After § 87(2)(b) refused to provide his phone, the officers grabbed § 87(2)(b) by her arms and her legs and placed her face-down onto the ground. While § 87(2)(b) was faced down on the ground, an officer was on top of her. § 87(2)(b) could not describe what the officer was doing while he was on top of § 87(2)(b). § 87(2)(b) could not see if § 87(2)(b) ever pulled away from the officers while on the ground.

In Video 1 (Board Review 10) obtained by the investigation an officer can be seen pulling § 87(2)(b) who was initially lying down on the bed, to an upright position. During that time a male can be heard telling the officer that § 87(2)(b) was pregnant. An officer replies, "I understand that, but she has to comply." Two officers can then be seen trying to get a hold of § 87(2)(b)'s arms, as § 87(2)(b) is seated in an upright position at the edge of her bed. § 87(2)(b) then pulls her arms away from the officers. The officers then positioned § 87(2)(b) on her back on the bed. A male can be heard asking, "What you are doing to her?"; however § 87(2)(b) and majority of the officers are not in camera view. At the 00:44 minute mark of the video, § 87(2)(b) can be seen on the floor as the officers surround her. An officer can be heard saying, "We are trying to help you, stop resisting." § 87(2)(b) then begins to scream (Board Review 11).



2018-02-16\_13-44-11 § 87(2)(b) Video 1.mp4

PO Ortega stated that when they informed § 87(2)(b) that she had to go to the hospital, she was issued verbal commands to stand up. Each time, § 87(2)(b) said that she was not going to the hospital. When asked which officer decided to make physical contact with § 87(2)(b) PO Ortega said, "I think it was a consensus because we all gave her ample time to come with us and it was just going to escalate." PO Ortega then grabbed § 87(2)(b) by her arm to pull her off of her bed. When he did so § 87(2)(b) went limp with her body and began sliding down towards the floor. PO Ortega in response told § 87(2)(b) to stop resisting. At this time PO Modesto was also grabbing § 87(2)(b) however, PO Ortega could not recall where on § 87(2)(b)'s body PO Modesto was making physical contact. PO Ortega also could not recall if the other officers on scene were making physical contact with § 87(2)(b) at that time. § 87(2)(b) refused to give officers her arms by pulling back her arms away from them and kicked PO Modesto in his leg as she sat on the bed. He later said he did not witness § 87(2)(b) kick PO Modesto and was only informed by PO Modesto of this after she did so. He just saw her kicking but did not see where her kicks landed. § 87(2)(b) was not considered to be armed but was considered to be violent being that she kicked PO Modesto. He stated, "At that point we just brought her to the ground since she did not want to stand up on her own, and at that time we handcuffed her. So I grabbed her arm put it over and other officer brought the other arm over and we placed cuffs on her." PO Ortega did not see if the other officers were making physical contact with § 87(2)(b) once she was placed onto the ground. PO Ortega could not recall placing his knee into § 87(2)(b)'s lower back and did not see any other officer do so. Besides grabbing her arms, PO Ortega was not making additional physical contact with any other part of § 87(2)(b)'s body. When asked if PO Modesto was making additional physical contact with any other part of § 87(2)(b)'s body PO Ortega said, "PO Modesto was holding her from her head. She was trying to get up and trying to fight us so he was just holding her head so she does not get up and try to resist us." PO Modesto



held § 87(2)(b)'s head against the ground. He could not recall if PO Modesto used two hands to do so. § 87(2)(b) was ultimately placed in handcuffs. PO Ortega could not recall which officer placed § 87(2)(b) in handcuffs. PO Ortega did not observe any visible injuries on § 87(2)(b)'s forehead, and § 87(2)(b) did not complain of any injuries at that time.

PO Modesto (Board Review 05) § 87(2)(g) stated that he was not able to successfully place § 87(2)(b) in handcuffs while she sat on her bed because § 87(2)(b) she began to kick sideways and in front of her. Once off of the bed, § 87(2)(b) refused to stand up, stiffened her arms, and threw herself to the ground. PO Modesto stated, "I remember holding the back of her head so she wouldn't swing her head as I was still trying to get one handcuff on her hand." PO Modesto placed his palm at the back of § 87(2)(b)'s head, and held her head against the ground. He continued to hold her head against the ground until she was placed in custody. PO Modesto did not know which side of § 87(2)(b)'s face was making contact with the ground. PO Modesto stated that he held § 87(2)(b)'s head against the ground to gain control of her because she was moving her head back and forth, kicking, and trying to get back up. PO Modesto did not have any additional reason for holding § 87(2)(b)'s head against the ground. PO Modesto did not use any additional force against § 87(2)(b) and did not see any officer use any additional force against § 87(2)(b). Other officers were also trying to assist during this time and PO Modesto heard an officer say that § 87(2)(b) was kicking. However, PO Modesto did not observe this. PO Modesto could not recall which officer ultimately placed § 87(2)(b) in handcuffs or how she was positioned when she was handcuffed. PO Modesto denied seeing any officer place their knee in § 87(2)(b)'s lower back. He also could not recall if § 87(2)(b) ever complained that an officer placed their knee in her back. PO Modesto did not recall § 87(2)(b) complaining of any pain, and stated that she only complained of pain when they arrived at the hospital later that day. Once handcuffed, PO Modesto and PO Ortega lifted § 87(2)(b) from the ground by picking her up from her under arms. PO Modesto did not observe any visible injuries to her face or arms at that time.

PO Blum (Board Review 06) stated that § 87(2)(b) was screaming and yelling and tried to throw herself face down onto the ground to prevent PO Ortega from grabbing her arms. Because she did not have enough room when she tried to throw herself onto the ground, § 87(2)(b) slowly ended up going to the ground on her stomach where she started kicking her feet, and flailing her arms. PO Ortega and PO Modesto then reached over § 87(2)(b) to get a hold of her arms behind her back so they could try to place the handcuffs on her wrists. Besides holding her forearms and wrists, PO Blum did not see PO Ortega and PO Modesto do anything else to prevent § 87(2)(b) from kicking and flailing her arms. PO Blum could not recall whether he saw an officer holding § 87(2)(b)'s head against the floor, nor could she recall whether § 87(2)(b) was making any movements with her head while on the floor. PO Blum did not see PO Ortega place his knee in § 87(2)(b)'s lower back because he was watching her feet while she was kicking. PO Blum then reached in to grab the wrist of one of § 87(2)(b)'s arms to assist PO Ortega in handcuffing her. § 87(2)(b) was faced down on the ground at this point and was flailing her hands behind her back in an up and down motion. Once PO Blum reached in to grab § 87(2)(b)'s wrist, PO Ortega was able to place § 87(2)(b) in handcuffs. Besides holding § 87(2)(b)'s wrists, PO Blum did not make any additional physical contact with § 87(2)(b) and did not use any additional force against her. PO Blum also did not see any other officers using additional force against § 87(2)(b).



description as his hair is significantly darker than PO Blum's. There was also a notation that PO Fiandola does not wear glasses.

§ 87(2)(g)

it is therefore recommended that **Allegation G** be closed an **Officer Unidentified**.

§ 87(2)(g), § 87(4-b)

#### Civilian and Officer CCRB Histories

- This is first case filed by or involving § 87(2)(b) (Board Review 13).
- PO Fabian Modesto has been a member of service for six years and has had 10 CCRB allegations pleaded against him. Of these 10 allegations, five allegations are still under investigation as of this writing. None of these allegations were substantiated § 87(2)(g).
- PO Richard Ortega has been a member of service for three years and has four CCRB allegations pleaded against him. Of those four allegations, two allegations are still under investigation as of this writing. None of these allegations were substantiated § 87(2)(g).
- PO Joseph Blum has been a member of service for three years and has two CCRB allegations pleaded against him. Of these two allegations, one allegation is still under investigation. None of these allegations were substantiated § 87(2)(g).

#### Mediation, Civil and Criminal Histories

- This case was eligible for mediation but the process was rejected by § 87(2)(b) § 87(2)(b).
- As of § 87(2)(b), the Law Offices of § 87(2)(b) has filed a Notice of Claim on § 87(2)(b)'s behalf in which they allege false arrest, false imprisonment, unlawful detention, excessive force, assault, battery, negligence and the performance of police duties,

negligence in hiring and retaining competent and unfit police personnel. They are seeking \$500,000.00 in redress (Board Review 14).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]

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Squad No.:    \_\_\_16\_\_\_

Investigator:    \_\_\_\_\_  
                                        Signature                                          Print Title & Name                                          Date

Squad Leader:    \_\_\_\_\_  
                                        Signature                                          Print Title & Name                                          Date

Reviewer:        \_\_\_\_\_  
                                        Signature                                          Print Title & Name                                          Date